

		Furthermore, as these motions are unopposed, Defendant failed to sustain his burden to establish whatever facts are necessary to justify the objection(s). While the parties argued over a protective order and privilege log, Plaintiff fails to sustain his burden to show why those protections are necessary. Sanctions are warranted pursuant to CCP§§ 2023.010, 2023.030, and 2031.320, 2030.290. However, \$24,485.00 for two discovery motions is overreaching. Court will allow 10 hours of time at \$450 an hour. Defendant to provide further, code compliant, verified responses, without objections to Form Rogs (Set 1) and RFPS (Set 1) and within 20 days. Defendant to produce documents in response thereto within 20 days. Defendant to pay sanctions in the amount of \$4500 within 20 days. <i>Plaintiff to give notice.</i>
101	Jimenez vs. Waste Management Collection and Recycling Inc., 24-01444106	Plaintiff SALVADOR JIMENEZ moves this Court for an order, pursuant to CCP§§ 2023.010–2023.040, 2025.230, 2025.450 2025.480, and 2031.310, compelling Defendant WASTE MANAGEMENT COLLECTION AND RECYCLING, INC. (“Defendant” or “WMCR”) to designate, prepare, and produce its Person Most Qualified (“PMQ”) for deposition and to produce documents, as follows: 1. To compel Defendant WMCR to designate, prepare, and produce one or more PMQ witnesses to testify regarding Matter Nos. 1 through 9 set forth in Plaintiff’s Notice of Deposition; 2. To compel Defendant WMCR to produce documents responsive to Demand Nos. 1 through 16 set forth in Plaintiff’s Notice of Deposition; and 3. For an order awarding monetary sanctions against Defendant and its attorneys of record, jointly and severally, in the amount of \$5,330.00, for their misuse of the discovery process. Initially, CCP § 2025.450(b)(2) requires, “The motion shall be accompanied by a meet and confer declaration under Section 2016.040....” Specifically, CCP § 2016.040(a) provides, “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

		The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions. [<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.] In this instance, the Declaration of Attorney Apodaca states, "On June 8, 2026, Defendant served its Response, asserting eleven 'General Objections' and boilerplate specific objections to every deposition topic and every document request, and refused to designate or produce any PMQ witness or any responsive document." (Decl. of Apodaca ¶4.) Thereafter, Attorney Apodaca sent two meet and confer emails on June 8, 2026 and June 12, 2026. (Id¶5,6, Ex. C, D.) Problematically, there was no attempt to meet and confer in person, telephonically, or via videoconference. Moreover, the emails do not suffice. Defendant objected to both the unilateral setting of the depo in addition to the Topics and RPDS. Yet, Plaintiff's Ex. C is a two-sentence request for a depo date. Similarly, Ex. D simply asks for dates, or it will file a motion. Conclusively, there was no attempt to narrow the issues down prior to filing this motion. Therefore, the Motion is DENIED without prejudice. Defendant's request for sanctions in the amount of \$500 is also DENIED as unsupported. The Case Management Conference is continued to September 24, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
102	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") moves to strike the claim for punitive damages from the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Plaintiff alleges that Defendant was operating a vehicle in the course and scope of her employment with the corporate defendants at a high rate of speed while using her cell phone when she crashed into Plaintiff's vehicle. Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient and driving while using a cell phone is not oppressive, malicious, vile, or oppressive. Defendant further argues that Plaintiff's allegations against the corporate defendants are insufficient because Plaintiff has not made any factual allegations that any officers, directors, and managing agents had advanced knowledge that